IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal filed in terms of Section 331 of the Code of Criminal Procedure Act No. 15 of 1979.

Democratic Socialist Republic of Sri Lanka

Complainant

Vs

Court of Appeal Case No: **CA/HCC/0323/2025**

High Court of Tangalle Case No: **HC/22/2005**

Ranasinghe Arachchige Sumanasena *alias* Sunil

Accused

AND NOW BETWEEN

Ranasinghe Arachchige Sumanasena *alias* Sunil

Accused – Appellant

Vs

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant - Respondent

Before	:	**P. Kumararatnam, J.**
		Pradeep Hettiarachchi, J.
Counsel	:	Anil Silva, PC, with Isuru Jayawardhana and A. Silva for the Accused – Appellant.
	:	Hiranjan Peiris, PC, ASG for the Respondent.
Argued on	:	25.08.2026
Decided on	:	22.10.2026

Pradeep Hettiarachchi, J

Judgment

1. The Accused-Appellant (hereinafter referred to as "the Appellant") was indicted before the High Court of Tangalle on one count of murder and sixteen counts of attempted murder, offences punishable under Sections 296 and 300 of the Penal Code, respectively. The trial was conducted before the learned High Court Judge of Tangalle without a jury.

2. At the conclusion of the trial, the Appellant was found guilty on the 1st, 2nd, 3rd, 4th, 7th, 8th, 9th, 10th, 11th, 13th, 14th, 15th, and 17th counts and was accordingly convicted and sentenced to 3 years' rigorous imprisonment in respect of the 2nd, 3rd, 4th, 8th, 9th, 10th, 11th, 12th, 13th, 14th, 15th, and 17th counts, together with a fine of Rs. 5000/- on each count, with 3 months' rigorous imprisonment in default of payment of the fine. Further, the Appellant was sentenced to death in respect of the first count.

3. It is against the said conviction and sentence that the Appellant has preferred the present appeal. The Appellant relies on the following grounds;

    a. Has the prosecution failed to prove the case against the Appellant beyond reasonable doubt;

b. Has the learned High Court Judge not taken into consideration the matters favorable to the Appellant and thereby has a miscarriage of justice occurred;
c. Has the learned High Court Judge evaluated the dock statement of the Appellant in accordance with the guidelines set out by the Superior Courts.

4. I shall first consider grounds (a) and (b), as they challenge the strength of the prosecution's evidence. In doing so, I will examine whether the learned Trial Judge failed to take into account evidence favourable to the defence and failed to give due consideration to the infirmities in the prosecution evidence, as contended by the Appellant.

5. At the trial before the High Court, the prosecution primarily relied on the evidence of PW1 and PW6, who identified the Appellant as the perpetrator of the alleged offences. Although other prosecution witnesses were present at the scene, none of them testified to having witnessed the alleged incident.

6. Accordingly, the evidence of PW1 and PW6 may be briefly summarized as follows;

7. According to the evidence of PW1, Manawasighe, the alleged incident took place on 26.07.2000, when he had organized a gathering at his residence and in the vicinity of the Weerakatiya-Tangalle Road, attended by approximately 50-60 persons.

8. PW1 testified that, while he was inviting those present to partake in the food, he observed the Appellant proceeding towards the Weerakatiya-Tangalle Road with a club in his hand. PW1 followed the Appellant, who attempted to assault Ajith Priyantha. However, the attempt was unsuccessful, as the persons present intervened and took the club away from the Appellant.

9. Thereafter, the Appellant proceeded to a nearby house and returned to the scene carrying a block of stone, with which he again attempted to assault Ajith Priyantha. This attempt was also unsuccessful. The Appellant then proceeded towards his

residence and returned to the scene approximately 10-15 minutes later, while PW1 and several others were waiting on the road.

10. According to PW1, upon his return, the Appellant was carrying an object in his right hand, which he struck against his hip before throwing it towards the group of persons gathered at the scene. PW1 testified that he did not recognize the object as a bomb before it was thrown. Immediately thereafter, the object exploded with a flash of light and a loud sound. Following the explosion, PW1 was admitted to hospital.

11. During the cross-examination, it was elicited that PW1 had made three statements to the police. In his first and second statements, PW1 had not mentioned the Appellant's name in connection with the alleged incident; it was only in his third statement that he identified the Appellant in relation to the alleged incident.

"ප්‍ර: තමුන් පොලිසියට කටඋත්තර 3 ක් ප්‍රකාශ කලා නේ?
උ: එහෙමයි.
ප්‍ර: ඊට පෙර අවස්ථාවලදී සුනිල් සම්බන්ධව කිව්වේ නැහැ නේද?
උ: මාතරදී කිව්වේ නැත.
ප්‍ර: බෙලිඅත්ත පොලිසියට කිව්වද?
උ: කිව්වේ නැත.
ප්‍ර: 2000.07.08 වන දින පොලිස් ප්‍රකාශය පෙන්නවා සිටි. එහි පිටු අංක 328 ජේදය 80 2 වන ප්‍රකාශයේදී මෙතැනදී නේද සුනිල් ගැන සඳහන් කලේ?
උ: ඒ ගැන මතක නැත.
ප්‍ර: බෙලිඅත්ත පොලිසියේදී සුනිල් ගැන සඳහන් කලද?
උ: එහෙම ප්‍රකාශ කලේ නැත." (at vide page 164 of the Appeal Brief)

12. PW6, the wife of the deceased, also testified for the prosecution. According to her evidence, on the day of the incident, she and her husband attended the party held in their neighbourhood. At about 10.30 p.m., upon hearing the sound of a quarrel, they proceeded towards the Weerakatiya – Tangalle Road.

13. PW6 further testified that the Appellant ran from the scene towards his house and, after a short while, returned carrying an unidentified black-coloured object in his hand, which he threw towards the group of people gathered there. At that moment, the deceased approached the Appellant, shouting, *"සුනිල් මල්ලි පාඩුවේ ඉඳපන්."* Immediately thereafter, there was a loud explosion accompanied by a flash of light, following which PW6 saw her husband lying on the road.

14. However, during cross-examination, it was elicited that, at non-summary inquiry, PW6 had testified that there was a knife at the scene, whereas, at the trial, she denied having given such evidence.

> *"ප්‍ර: මේ සිද්ධිය සම්බන්ධයෙන් ලඝු නොවන පරීක්ෂණයේදී සාක්ෂි දුන්න මතකද?*
> *උ: මතකයි.*
> *ප්‍ර: සෝමලතා කියන්නේ තමන්?*
> *උ: ඔව්.*
> *ප්‍ර: සුනිල්ගේ ගෙදරට දුවනවා දැක්ක. වැඩි වෙලාවක් ගත වුනේ නැහැ එතොකොට පිහියක් වගේ එකක් තිබුන. තමුන් එහෙම කිව්වද?*
> *උ: මම එහෙම කිව්වේ නැහැ. (at vide pages 197-198 of the Appeal Brief)*
> *……..*
> *ප්‍ර: එක නිසා පහල අධිකරණයට පිහියක් වගේ එකක් තිබුන කියලා පසුව කියනවා බෝම්බයක් කියල.*
> *උ: මම කිව්වා බෝම්බයක් කියල. මම දැක්කනේ.*
> *ප්‍ර: තමන් මේකේ තියෙන එක පිළිගන්නේ නැහැ?*
> *උ: නැහැ."*
> *(පිහියක් වගේ එකක් තිබුණා කියන කොටස වී. 1 වශයෙන් ලකුණු කරයි.) (at vide pages 199-200 at the Appeal Brief)*

15. Notably, although PW1 and PW6 identified the Appellant as the perpetrator of the alleged incident in their trial testimony, neither witness implicated the Appellant in the history provided to the JMO who examined them following the incident. The Medico-Legal Report (MLR) of both witnesses recorded that, at about 10.30 p.m., on 26.07.2000 at Viharadeniya, they heard a blasting sound and sustained injuries

thereafter. Neither MLR contains any reference to the Appellant in connection with the alleged incident. (vide pages 763 and 779 of the Appeal Brief)

16. Further, it is significant to note that, according to the evidence of PW20, the quarrel that took place at the scene was between Kaju Saman *alias* Saman Ekanayake and Heen Malli. PW20 did not refer to any quarrel between the Appellant and Ajith Priyantha. This evidence is relevant when considering the prosecution's version of the events leading up to the alleged incident.

"ප්‍ර: කව්රු කව්රුද රණ්ඩු වුනේ?
උ: කජු සමන්
ප්‍ර: කාත් සමගද රණ්ඩු වුනේ?
උ: හීන් මල්ලිත් එක්ක." (at vide page 223 of the Appeal Brief)

17. Accordingly, the evidence of PW20 does not corroborate the alleged quarrel between the Appellant and Ajith Priyantha, which, according to the prosecution's case, preceded the incident. This discrepancy assumes significance when assessed alongside the other evidentiary weaknesses discussed above.

18. Apart from PW1 and PW6, several other prosecution witnesses, including PW2, PW5, PW4, PW17, PW20, PW18, PW19, PW23, PW22, PW15, PW11, and PW21, were present at the scene of the incident. However, none of these witnesses testified to having witnessed the actual incident. In the circumstances, it is unnecessary to discuss their evidence in detail.

19. In light of the foregoing evidence, serious doubt arises as to whether PW1 and PW6 actually witnessed the alleged incident and, in particular, whether the Appellant was indeed the person who threw the bomb towards the crowd gathered at the scene.

20. According to PW1, Ajith Priyantha, who was alleged to have had a quarrel with the Appellant, could not be traced after the incident and did not give evidence at the inquest.

"ප්‍ර: මරණ පරීක්ෂණයට ආවේ නැහැ අජිත් ප්‍රියන්ත?

උ: නැහැ.

ප්‍ර: මරණ පරීක්ෂණය තිබුනේ කවද්ද?

උ: මට හරියට මතක නැහැ.

ප්‍ර: 2002.08.04 දින කිව්වොත් හරිද?

උ: පිළිගන්න පුළුවන් ස්වාමීනි.

ප්‍ර: 2000.07.26 සිද්ධිය වූ දිනට පසුව 2000.08.04 දින තෙක් අජිත් ප්‍රියන්ත සොයා ගන්න සිටියේ නැහැ?

උ: නැහැ. මාතර ඉස්පිරිතාලයේ නතර වෙලා සිටියේ.

ප්‍ර: කොපමණ දවසක් සිටියද?

උ: මම එක දවසක් සිටිය. පසුව මම දන්නේ නැහැ." (at vide pages 171-172 of the Appeal Brief)

21. It is also significant that Ajith Priyantha, who was allegedly involved in the quarrel preceding the incident and was named as a prosecution witness, could not be traced following his hospitalization as a result of the incident. His absence deprived the court of the opportunity to hear his account of the alleged quarrel and the events surrounding the explosion. In the circumstances, his unexplained absence, considered together with the evidence of PW1 and PW6, warrants careful consideration when evaluating the prosecution's case.

22. These matters, when considered cumulatively with the inconsistencies in the evidence of PW1 and PW6, give rise to legitimate questions concerning the sequence of events, the identity of the person who threw the explosive device, and whether the prosecution has established the Appellant's involvement beyond reasonable doubt.

23. Notably, the infirmities in the prosecution case relate, inter alia, to the manner in which PW1 and PW6 claimed to have identified the Appellant as the person who threw the bomb towards the crowd. Although both witnesses implicated the Appellant in their testimony before the Trial Court, neither referred to the Appellant in the history provided to the JMO, as reflected in their respective MLRs.

24. Furthermore, PW1 had failed to mention the Appellant's name in his first and second statements to the police, identifying him only in his third statement. These omissions and the subsequent identification of the Appellant raise legitimate concern regarding the consistency and reliability of the identification evidence.

25. It is noteworthy that the Appellant was not a stranger to PW1. In these circumstances, had PW1 correctly identified the Appellant at the scene of the incident, there would have been no apparent reason for him to omit the Appellant's name from his first two statements to the police. No plausible explanation was forthcoming from PW1 for this omission. This unexplained failure to identify the Appellant at the earliest opportunity raises a reasonable doubt as to the correctness of PW1's identification. In my view, such doubt renders the conviction unsafe.

26. Moreover, in the absence of corroborative evidence from other witnesses who were present at the scene, the evidence identifying the Appellant as the perpetrator requires particularly careful scrutiny. In the circumstances, the question arises as to whether the identification evidence of PW1 and PW6, when considered in its entirety and in the context of other discrepancies in the prosecution case, is sufficiently reliable to establish the identity of the perpetrator beyond reasonable doubt.

27. This is a pivotal point in the trial given that PW1 and PW6 are the sole eyewitnesses to the crime. The issue of identification is paramount and necessitates rigorous scrutiny, especially in a criminal trial where the stakes are exceedingly high and could significantly impact the prosecution case.

28. In ***Dassanayake Lekamlage Somapala alias Gangabada Sudu and Other Vs. Attorney General, 1 CA 208-2010/2011***, decided on 02.09.2014, by Anil Goonaratne J., held that;

> *"A very important aspect of a criminal trial is that the perpetrators of the crime need to be identified with certainty. Absence of identity of accused would be fatal to the prosecution case. The learned High Court Judge has merely referred to*

the items of evidence of the declaration (P5) but has not considered its probative value."

29. In ***Opatha Widanapathiranege Wasantha and 3 Others Vs. Attorney General, CA/179/2006***, decided on 29.04.2010, by Ranjith Silva, J, held that;

"The Learned Trial Judge ought to have followed the standard guidelines with regard to his directions to the jury. On the issue of identification evidence the judges must give accurate directions regarding the identification evidence and direct the jury that they must be satisfied beyond reasonable doubt that the accused were correctly identified and give the benefit of any doubt to the accused. The Jury must be directed as to the possibility of a mistaken identity even by honest witnesses and if they cannot make up their minds as to whether the witnesses were lying or mistaken the accused must be given the benefit of the doubt and should be acquitted. The trial judge must direct the jury to examine closely the circumstances under which the identification came to be made and the means of identification. The trial judge should direct the jury on the rules laid down in Rex v. Turnbull."

30. The Turnbull guidelines provided in the case of ***Regina Vs. Turnbull (1977) QB 224***, laid down important guidelines for judges as to the manner in which they should assess evidence in relation to a situation where the identity of an accused person comes into question. The said guidelines read as follows;

It requires a trial judge to be mindful that;

i. *Caution is required to avoid the risk of injustice.*
ii. *A witness who is honest may be wrong even if they are convinced, they are right.*
iii. *A witness who is convincing may still be wrong.*
iv. *More than one witness may be wrong.*
v. *A witness who recognizes the defendant even when the witness knows the defendant well may be wrong.*

Some of the circumstances a Judge should direct the jury to examine in order to find out whether a correct identification has been made include;

i. *The length of time the accused was observed by the witnesses.*
ii. *The distance the witness was from the accused.*
iii. *The state of the light.*
iv. *The length of time elapsed between the original observation and the subsequent identification.*

31. In ***Sucha Singh Vs. State of Punjab, (2003) 7 SCC 643,*** it was held inter alia:

> *".....normal discrepancies in evidence are those which are due to normal errors of observation, normal errors of memory due to lapse of time, due to mental disposition such as shock and horror at the time of occurrence and those are always there however honest and truthful a witness may be. Material discrepancies are those which are not normal, and not expected of a normal person. Courts have to label the category to which a discrepancy may be categorized. While normal discrepancies do not corrode the credibility of a party's case, material discrepancies do so.....Where it is not feasible to separate truth from falsehood, because grain and chaff are inextricably mixed up, and in the process of separation an absolutely new case has to be reconstructed by divorcing essential details presented by the prosecution completely from the context and the background against which they are made, the only available course to be made is to discard the evidence in toto."*

32. Upon scrutinizing the evidence of PW1 and PW6, along with the above observations, I am of the view that their testimonies regarding identification cast doubt due to a lack of cogent evidence concerning the identification of the Appellant. In this instance, the learned High Court Judge has convicted the Appellant of the alleged offences primarily based on the evidence of PW1 and PW6. However, we find that this evidence is insufficient to establish the prosecution's case beyond reasonable doubt.

33. Further, since there exists a serious doubt as to whether PW1 and PW6 actually witnessed the alleged incident in the manner they have described, their testimonies regarding the Appellant as the real perpetrator become highly doubtful and unsafe to rely upon. In such circumstances, the evidence of PW1 and PW6, being uncorroborated on this crucial aspect and suffering from the issues of credibility and reliability, cannot be accepted as a safe basis to sustain a finding against the Appellant. Therefore, it is my view that such identification cannot be regarded as sufficient to establish, beyond reasonable doubt, the participation of the Appellant in the alleged incident.

34. Moreover, it was contended on behalf of the Appellant that the learned High Court Judge failed to properly evaluate the dock statement of the Appellant. However, I shall not consider this ground of appeal, as the above-mentioned grounds of appeal are sufficient to dispose of this appeal.

35. Upon careful consideration of the totality of the evidence and the material infirmities discussed above, it is my considered view that the conviction of the Appellant is unsafe and unsustainable in law. When the Appellant is facing a capital charge, every point in favour of the Appellant needs to be considered. Accordingly, the conviction and sentence imposed on the Appellant are set aside, and the Appellant is acquitted of all charges.

36. The appeal is accordingly allowed.

Judge of the Court of Appeal

P. Kumararatnam, J.,

I agree

Judge of the Court of Appeal